

the upcoming hearings on discovery, and that there is a case management conference set for June 9, 2026 after the pending discovery motions should be resolved. The Court takes into consideration Mr. Malboubi's evidence regarding "minimizing stress" by resolving the litigation as soon as "reasonably possible," but the Court does not find that the record on this motion shows that the interests of justice will be served in this case by granting the discretionary trial preference motion and setting a trial date for early July 2026.

Conclusion, Ruling, and Notes on Upcoming Hearings and CMC

For the reasons stated, the motion for mandatory or discretionary trial preference under Code of Civil Procedure sections 36(a) and 36(e) is **DENIED, WITHOUT PREJUDICE**. The Court denies the motion without prejudice to make it explicit that if there is a material change in circumstances and if additional facts arise, including evidence of a deterioration in Mr. Malboubi's health conditions, that make trial preference necessary to prevent prejudice to Plaintiff's interest in the case (Code Civ. Proc. § 36(a)), or that change the considerations regarding whether the interests of justice would be served by granting trial preference (Code Civ. Proc. § 36(e)), Plaintiff may renew the motion.

The case has been pending since July 31, 2025, approximately seven months. Despite the Court's ruling on the trial preference motion based on the evidence before it, the Court also does not intend to allow this litigation to be unduly delayed given the narrow scope of the claims, which generally involve whether Mr. Malboubi's Richmond property should be permitted to be converted to a condominium or subdivided into two lots, and if so, on what conditions. The Court's register of actions shows that there is a case management conference scheduled for June 9, 2026, which follows a series of hearings on pending discovery disputes based on discovery motions filed by Mr. Malboubi that are set between March 2, 2026 and May 4, 2026. At the upcoming CMC, the parties should be prepared to address the timing for closing discovery, the conduct of mediation or a settlement conference, and the setting of a trial date.

11. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. DOES 1-50
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a demurrer to plaintiff's first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N. Also before the Court on this calendar are a motion to strike plaintiff's first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N. and a joinder in the demurrer by defendant Dr. Joseph Toscano. For the reasons set forth, the Court **CONTINUES** the hearing on the demurrer, motion to strike and joinder to **9:00 a.m. on May 11, 2026**.

The Court further **ORDERS** that the hearings on the demurrers and motions to strike filed by other defendants challenging Plaintiff's first amended complaint, presently set for hearing on various dates from April 13, 2026 to June 8, 2026, to be **CONTINUED OR ADVANCED AND RESET** for hearing at **9:00**

a.m. on May 11, 2026, as set forth below.

The Court further **ORDERS** that counsel for defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Judith Grove, R.N., and Rene Ochoa, R.N., file and serve written notice on all parties of this ruling and the change in hearing dates on all pending demurrers, motions to strike, and Dr. Toscano's joinder **by March 9, 2026**.

Continuance, Advancement, and Resetting of Hearings

The register of actions in this case reflects that multiple challenges to plaintiff's first amended complaint ("FAC") have been filed by other defendants in this action, in addition to those set for hearing on March 2, 2026. The following are the other pending challenges to the FAC, according to the Court's Odyssey system:

- Defendant Narendra Malani, M.D.'s demurrer to Plaintiff's FAC and motion to strike Plaintiff's FAC set for hearing on April 13, 2026;
- Defendant Dr. Joseph Toscano's demurrer to Plaintiff's FAC set for hearing on May 11, 2026;
- Defendant Tenet Healthcare Corporation's demurrer to Plaintiff's FAC set for hearing on May 18, 2026; and
- Defendant Tenet Healthcare Corporation's motion to strike Plaintiff's FAC originally set for hearing on June 1, 2026 and reset to June 8, 2026.

The Court finds it appropriate for all these challenges to the same pleading (Plaintiff's FAC) to be heard and determined concurrently on May 11, 2026. The Court therefore **CONTINUES** the hearings on the following matters to **9:00 a.m. on May 11, 2026**:

- Defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N.'s demurrer and motion to strike Plaintiff's FAC;
- Defendant Dr. Joseph Toscano's joinder in defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N.'s demurrer to Plaintiff's FAC; and
- Defendant Narendra Malani, M.D.'s demurrer to Plaintiff's FAC and motion to strike Plaintiff's FAC.

The Court therefore also **ADVANCES** and **RESETS** the hearings on the following matters to **9:00 a.m. on May 11, 2026**:

- Defendant Tenet Healthcare Corporation's demurrer to Plaintiff's FAC; and
- Defendant Tenet Healthcare Corporation's motion to strike Plaintiff's FAC.

Counsel for defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Judith Grove, R.N., and Rene Ochoa, R.N. is directed to provide written notice to all parties as set forth above.

12. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. DOES 1-50
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

See Line 11 above.

13. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. DOES 1-50
HEARING IN RE: DR. JOSEPH TOSCANO'S JOINDER IN DEMURRER TO FIRST AMENDED COMPLAINT
BY SAN RAMON REGIONAL MEDICAL CENTER
FILED BY: TOSCANO, DR. JOSEPH
TENTATIVE RULING:

See Line 11, above.

14. 9:00 AM CASE NUMBER: MSC21-00144
CASE NAME: BROUWER VS GREGORY FUNDING
***HEARING ON MOTION IN RE: REMOVE AND/OR CHANGE HER GUARDIAN AD LITEM PER**
ARBITRATOR'S ORDER
FILED BY: PARK BROUWER, HELEN
TENTATIVE RULING:

Parties to appear per Order dated February 25, 2026.

15. 9:00 AM CASE NUMBER: N25-2114
CASE NAME: CLAIM OF:ADIEN GUTIERREZ-BANEGAS AIDEN GUTIERREZ-BANEGAS
***HEARING ON MINOR'S COMPROMISE**
FILED BY: GUTIERREZ, NICKO
TENTATIVE RULING:

Claimant Aiden Gutierrez-Banegas, by and through the duly appointed guardian ad litem herein, Petitioner Nicko Gutierrez ("Petitioner") filed a Petition for Approval of Compromise of Claim on or about October 27, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on March 2, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows: